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Case Number: 26VECV00261 Hearing Date: August 10, 2026 Dept: 107

SUPERIOR COURT OF THE
STATE OF CALIFORNIA

COUNTY OF LOS ANGELES

NORTHWEST DISTRICT

Grigor Karapetyan,

Plaintiff.

v.

Adewale Adebanjo, et al.

Defendants.

Case Number Department

26VECV00261 107

COURT'S [TENTATIVE]
ORDER RE:

Demurrer without Motion to Strike¿

[THE FOLLOWING IS A TENTATIVE RULING IN THE ABOVE CASE]:

(1) Sustain as to the first and fourth causes of action; (2) Overrule as to the second and third causes of action; (3) Grant leave to amend.

I. BACKGROUND

In 2023, Cross-Complainant Adeniye Adeleye ("Cross-Complainant") entered into a written agreement with Cross-Defendant Grigor Karapetyan ("Cross-Defendant") for the purchase of all outstanding shares of Auxiliary Home Health Care ("Auxiliary"). (Cross-Complaint ¶¶ 2, 7.) Cross-Complainant paid Cross-Defendant the required $170,000. (Cross-Complaint ¶ 7.) Cross-Complainant was required to notify CMS, CDPH, ACHC and all other regulatory bodies regarding the change of ownership and control. (Cross-Complaint ¶ 8.) Cross-Defendant had to provide authorization and participate in the PECOS registration process. (Cross-Complaint ¶ 8.) Cross-Defendant failed to work with Cross-Complainant, so Cross-Complainant was unable to complete the PECOS registration. (Cross-Complaint ¶¶ 8-9.) Cross-Defendant requested an additional $3,000 per month to cooperate with the PECOS registration. (Cross-Complaint ¶ 9.) This additional sum was not authorized by the written agreement. (Cross-Complaint ¶ 9.) Cross-Complainant was unable to bill insurance companies and maintain a customer base because the PECOS information did not match Cross-Complainant's information and identity. (Cross-Complaint ¶ 10.)

Cross-Complainant and Cross-Defendant also entered into a verbal agreement for Cross-Complainant to purchase Splendid Home Health's ("Splendid") outstanding shares for $50,000. (Cross-Complaint ¶ 12.) Cross-Defendant told Cross-Complainant he would provide a written agreement and comply with the change of ownership process. (Cross-Complaint ¶ 12.) Cross-Complainant gave Cross-Defendant a cashier's check, Cross-Defendant accepted the check and "said that he had the written agreement in his car and that he would be right back with it." (Cross-Complaint ¶ 13.) Cross-Defendant did not return but deposited the $50,000.00 check. (Cross-Complaint ¶ 13.)

On January 15, 2026, Plaintiff Grigor Karapetyan filed a complaint against Defendants Adewale Adebanjo, Tinuoye Peters, Adeniyi Adeleye, and Does 1 to 50, alleging causes of action for: (1) breach of contract; (2) breach of contract;

(3) breach of contract; and (4) declaratory relief.

On May 15, 2026, Cross-Complainant filed a cross-complaint against Cross-Defendant and Roes 1 to 10, alleging causes of action for: (1) breach of contract; (2) fraud; (3) conversion; and (4) fraud.

On June 17, 2026, Cross-Defendant filed a demurrer without motion to strike. On July 28, 2026, Cross-Complainant filed an opposition. As of August 5, 2026, no reply has been filed.

II.
TIMELINESS

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“A person against whom a complaint or cross-complaint has been filed may, within 30 days after service of the complaint or cross-complaint, demur to the complaint or cross-complaint.” (Code Civ. Proc., §¿430.40, subd. (a).)¿

Per Code of Civil Procedure section¿1005, subdivision (b), moving papers must be filed at least 16 court days before the set hearing, oppositions must be filed at least nine court days before the set hearing, and replies must be filed at least five court days before the set hearing.

Electronic service extends the deadline by two court days. (Code Civ. Proc., § 1010.6, subd. (a)(3)(B).)

Cross-Complainant served Cross-Defendant with the cross-complaint by electronic mail on May 15, 2026. (Cross-Complaint pdf p. 11.) Cross-Defendant filed the demurrer with motion to strike on June 17, 2026, which was more than thirty days, plus two court days for electronic service, after May 15, 2026. Thus, the demurrer was untimely under Code of Civil Procedure section 430.40. “A trial court has broad discretion to accept or reject late-filed papers.” (Jack v. Ring LLC (2023) 91 Cal.App.5th 1186, 1210, brackets removed.) The court will exercise its discretion and consider the untimely demurrer.

The demurrer and opposition were timely filed under Code of Civil Procedure section 1005, subdivision (b).

III.
MEET
AND CONFER

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California Code of Civil Procedure section¿430.41, subdivision (a) requires parties to “meet and confer in person, by telephone, or by video conference” before the filing of a demurrer to attempt to resolve the objections raised in the demurrer.¿The demurring party is required to file and serve with the demurrer a declaration either confirming that parties were unable to resolve the issues raised by the demurrer despite having met and conferred or that the opposing party failed to meet and confer with the demurring party in good faith. (Code Civ. Proc., §¿430.41, subd. (a)(3).)

In opposition, Cross-Complainant argues Cross-Defendant’s counsel failed to properly meet and confer. (Opposition pp. 3-4.)

Cross-Defendant’s counsel submits a declaration stating they emailed Cross-Complainant’s counsel requesting a time to meet and confer, Cross-Complainant’s counsel’s office called back to schedule a meeting, but Cross-Complainant’s counsel’s assistant then canceled the meeting. (Khojayan Declaration ¶ 3.) Cross-Complainant’s counsel’s assistant told Cross-Defendant’s counsel that Cross-Complainant’s counsel would call them when Cross-Complainant’s counsel was free. (Khojayan Declaration ¶ 3.) Cross-Defendant’s counsel did not receive a call back. (Khojayan Declaration ¶ 4.)

Cross-Defendant’s counsel spoke to Cross-Complainant’s counsel’s office on the phone, but Cross-Complainant’s counsel failed to call Cross-Defendant’s counsel back. The court concludes Cross-Defendant’s counsel’s meet and confer efforts were sufficient.

IV.
LEGAL
STANDARD

"A demurrer tests the pleading alone, and not the evidence or the facts alleged." (E-Fab, Inc. v. Accountants, Inc. Servs. (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint's properly pleaded or implied factual allegations. (Id.) The court also considers "judicially noticed matters." (Id.) A complaint must contain "[a]¿statement¿of the¿facts¿constituting the cause of action, in ordinary and concise language." (Code Civ. Proc., §¿425.10, subd. (a)(1).) A "complaint ordinarily is sufficient if it alleges ultimate rather than evidentiary facts." (Doe v. City of Los Angeles (2007) 42 Cal.4th 531, 550.)¿

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A party may demur to a complaint because the complaint "does not state facts sufficient to constitute a cause of action." (Code Civ. Proc., § 430.10, subd. (e).)¿

V.
DISCUSSION

Cross-Defendant demurs to all of Cross-Complainant's causes of actions, arguing they fail to state fact sufficient to constitute causes of action. (Demurrer p. 3.)

First Cause of Action
for Breach of Contract:

Cross-Defendant argues Cross-Complainant fails to allege the written agreement required Cross-Defendant "to do anything regarding the ownership change" and "specifically states change of ownership and processing of new owner's information was the obligation of Cross-Complainant." (Demurrer p. 5.) Cross-Defendant argues Cross-Complainant therefore fails to allege Cross-Complainant performed his obligations and Cross-Defendant breached his obligations. (Demurrer p. 5.)

In opposition,
Cross-Complainant argues “[t]he written agreement necessarily contemplated that both parties would take all steps required to complete the ownership transfer, including the PECOS registration.” (Opposition pp. 4-5.)

The
elements of a breach of contract claim are: (1) existence of a contract; (2) plaintiff’s performance or excuse for nonperformance; (3) defendant’s breach; and (4) resulting damage. (Wall Street Network, Ltd. v. N. Y. Times Co. (2008) 164 Cal.App.4th 1171, 1178.)

“’A written
contract may be pleaded either by its terms—set out verbatim in the complaint or a copy of the contract attached to the complaint and incorporated therein by reference—or by its legal effect.’ [Citation.] In order to plead a contract by its legal effect, plaintiff must ‘allege the substance of its relevant terms.’”¿(Heritage Pacific Financial, LLC v. Monroy¿(2013) 215 Cal.App.4th 972, 993.) ¿Pleading a contract by its legal effect “is more difficult, for it requires a careful analysis of the instrument, comprehensiveness in statement, and avoidance of legal conclusions.” (Id.)

Cross-Complainant
alleges he entered into a written agreement with Cross-Defendant to purchase all of Auxiliary’s outstanding shares. (Cross-Complaint ¶ 7.) Cross-Complainant alleges he was required to, and did, pay Cross-Defendant $170,000. (Cross-Complaint ¶ 7.) “Cross-Complainant was required to notice CMS, CDPH, ACHC and all other regulatory bodies regarding the change of ownership and control.” (Cross-Complaint ¶ 8.) Cross-Complainant began the process but was unable to complete the PECOS registration because Cross-Defendant did not provide authorization or participate in the process. (Cross-Complaint ¶ 8.) “Instead, Cross-Defendant requested that Cross-Complainant agree to pay him an additional $3,000 per month for his cooperation with the PECOS registration.” (Cross-Complaint ¶ 9.) The written agreement did not authorize this additional sum. (Cross-Complaint ¶ 9.)

The court understands
that Cross-Complainant argues that “[t]he written agreement necessarily contemplated that both parties would take all steps required to complete the ownership transfer, including the PECOS registration.” (Opposition pp. 4-5.) Cross-Complainant did not attach a copy of the written agreement to the cross-complaint. Thus, Cross-Complainant

must allege the contract by its legal effect, which requires “careful analysis of the instrument, comprehensiveness in statement, and avoidance of legal conclusions.” (Heritage, supra, 215 Cal.App.4th at p. 993.) Cross-Complainant does not specifically allege Cross-Defendant was required to take all steps required to transfer ownership, including the PECOS registration. As such, Cross-Complainant has not sufficiently alleged the first cause of action for breach of contract.

The demurrer on this ground is sustained.

Second Cause of Action for Fraud:

Cross-Defendant argues Cross-Complainant fails to allege a knowingly false misrepresentation, intent to deceive or induce reliance, justifiable reliance, and the time or date or manners the alleged misrepresentations were made. (Demurrer p. 6.)

In opposition, Cross-Complainant argues he sufficiently alleges fraud with the required specificity. (Opposition pp. 6-7.)

The elements of a fraud cause of action are “(a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or ‘scienter’); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage.” (Rattagan v. Uber Technologies, Inc. (“Rattagan”) (2024) 17 Cal.5th 1, 32.) Fraud must be alleged with specificity. (Id. at p. 43.) “When affirmative misrepresentation fraud is alleged, ‘This particularity requirement necessitates pleading facts which “show how, when, where, to whom, and by what means the representations were tendered.”’” (Id. original italics.)

Cross-Complainant alleges a misrepresentation by alleging Cross-Defendant told Cross-Complainant “he had the written agreement in his car and that he would be right back with it” but “[i]nstead of coming back into the office with a written agreement, Cross-Defendant got in his car and drove away with the check.” (Cross-Complaint ¶ 25.) Cross-Complainant further alleges that “Cross-Defendant never returned with the written agreement but, did take and deposit the $50,000 check.”

(Cross-Complaint ¶ 26.)

Cross-Complainant alleges Cross-Defendant knew this statement was false and intended to defraud Cross-Complainant by alleging “Cross-Defendant had no intention of providing a written agreement or otherwise cooperating in the transfer of ownership and control of Splendid Home Health.” (Cross-Complaint ¶ 28.)

Cross-Complainant alleges justifiable reliance by alleging “Cross-Complainant reasonably relied on Cross-Defendant’s representation that he would be right back with a written agreement at the time that he handed him the check.” (Cross-Complaint ¶ 25.)

Cross-Complainant also alleges damages. (Cross-Complaint ¶ 29.)

Further, Cross-Complainant alleges how the misrepresentation was tendered by alleging Cross-Defendant “said that he had the written agreement in his car and that he would be right back with it.” (Cross-Complaint ¶ 25.) Cross-Complainant alleges when and where the misrepresentation was tendered by alleging it was at Cross-Complainant’s office in 2024. (Cross-Complaint ¶ 25.) Cross-Complainant alleges to whom and by what means the misrepresentation was tendered by alleging it was verbally tendered to Cross-Complainant. (Cross-Complaint ¶ 25.)

Cross-Complainant sufficiently alleges a fraud cause of action. The demurrer on this ground is overruled.

Third Cause of Action for Conversion:

Cross-Defendant argues Cross-Complainant fails to allege specific facts demonstrating conversion and the facts alleged are the same as the breach of contract claims. (Demurrer pp. 6-7.) Cross-Defendant further argues that Cross-Complainant “does not allege any ownership of any property, amy wrongful act converting said property or damages.” (Demurrer p. 7.)

In opposition,

Cross-Complainant argues they sufficiently allege the elements of a conversion cause of action and the conversion cause of action is not duplicative of the breach of contract cause of action because the conversion claim relates to an oral agreement for Splendid while the breach of contract claim relates to a written agreement for Auxiliary. (Opposition p. 7.)

"The elements of a conversion claim are: (1) the plaintiff's ownership or right to possession of the property; (2) the defendant's conversion by a wrongful act or disposition of property rights; and (3) damages." (Burlesci v. Petersen (1998) 68 Cal.App.4th 1062, 1066.)

Cross-Complainant alleges he entered into a verbal agreement with Cross-Defendant to purchase Splendid's outstanding shares for $50,000. (Cross-Complaint ¶ 32.) Cross-Complainant alleges Cross-Defendant told Cross-Complainant "he would provide a written agreement and comply with the change of ownership process in the same or similar manner as set forth above concerning the Auxiliary . . . transfer of ownership and control process." (Cross-Complaint ¶ 32.) Cross-Complainant requested that Cross-Defendant provide the written agreement. (Cross-Complaint ¶ 33.) Cross-Defendant came to Cross-Complainant's office, accepted a cashier's check for $50,000 from Cross-Complainant, and told Cross-Complainant he had the written agreement in his car and would be right back with it. (Cross-Complaint ¶ 33.) Cross-Defendant did not return with the written agreement but deposited the check for $50,000. (Cross-Complaint ¶ 34.) Cross-Defendant did not provide the signed agreement or formalize transferring ownership and control of Splendid to Cross-Complainant. (Cross-Complaint ¶ 35.) Finally, Cross-Complainant alleges he "has been harmed in the amount of $50,000 and Cross-Defendants conduct was the substantial factor in causing this harm." (Cross-Complaint ¶ 36.)

Cross-Complainant alleges ownership or right to possession of the $50,000 check, Cross-Defendant's conversion by wrongful act through Cross-Defendant's promise to provide a written agreement but subsequent failure to provide the written agreement or transfer of ownership and control, and damages. (Cross-Complaint ¶¶ 32-36.)

Finally, the breach of contract cause of action is based upon the written agreement relating to Auxiliary. (Cross-Complaint ¶ 17.) The conversion cause of action is based upon the verbal agreement relating to Splendid. (Cross-Complaint ¶ 32.) These causes of action are not duplicative.

Cross-Complainant
sufficiently alleges a conversion cause of action. The demurrer on this ground is overruled.

Fourth Cause of Action
for Fraud:

Cross-Defendant argues
Cross-Complainant fails to plead a knowingly false misrepresentation, intent to deceive or induce reliance, justifiable reliance, or the time or date or manner in which the alleged misrepresentations were made. (Demurrer p. 7.)

In opposition,
Cross-Complainant argues he sufficiently alleges fraud in the inducement with the required specificity. (Opposition p. 8.)

The elements of a
fraud cause of action are "(a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or 'scienter'); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage." (Rattagan, supra, 17 Cal.5th at p. 32.) Fraud must be alleged with specificity. (Id. at p. 43.) "When affirmative misrepresentation fraud is alleged, 'This particularity requirement necessitates pleading facts which "show how, when, where, to whom, and by what means the representations were tendered."'" (Id. original italics.)

Fraud in the
inducement "occurs when 'the promisor knows what he is signing but his consent is induced by fraud, mutual assent is present and a contract is formed, which, by reason of the fraud, is voidable.'" (Hinesley v. Oakshade Town Center (2005) 135 Cal.App.4th 289, 294-295, internal quotation marks omitted.)

Cross-Complainant
alleges he entered into a written agreement with Cross-Defendant for the purchase of Auxiliary's outstanding shares. (Cross-Complaint ¶ 39.)

Cross-Complainant was required to notify CMS, CDPH, ACHC and all other regulatory bodies regarding the change of ownership and control. (Cross-Complaint ¶ 40.) Cross-Complainant was unable to complete the PECOS registration without Cross-Defendant's authorization and participation. (Cross-Complaint ¶ 40.) "Cross-Complainant made repeated demands of Cross-Defendant to work with him to update the PECOS registration but, Cross-Defendant failed to do so." (Cross-Complaint ¶ 41.) Cross-Defendant requested an additional $3,000 per month to cooperate with the PECOS registration, which was not authorized by the written agreement. (Cross-Complaint ¶ 41.)

Cross-Complainant alleges "Cross-Defendant had no intention of complying with the updated PECOS registration process unless Cross-Complainant agreed to pay an additional $3,000 per month to Cross-Defendant." (Cross-Complaint ¶ 44.)

Cross-Complainant also alleges:

Cross-Complainant is informed and believes that Cross-Defendant knowingly accepted $170,000 from Cross-Complainant and waited for Cross-Complainant to invest significant time and money in preparing to operate the Auxiliary Home Health Care business before he revealed his intention to condition his full relinquishment of operational control and ownership on the payment of additional compensation in the amount of $3,000 per month.

(Cross-Complaint ¶ 46.)

Finally, Cross-Complainant alleges damages. (Cross-Complaint ¶ 47.)

Cross-Complainant does not specifically allege Cross-Defendant knew at the time they entered into the written agreement that Cross-Defendant would be required to authorize and participate in the PECOS registration but fraudulently induced Cross-Complainant's consent to the written agreement by, for example, concealing that fact.

The

demurrer on this ground is sustained.

VI.
LEAVE
TO AMEND

“Where
the defect raised by a motion to strike or by demurrer is reasonably capable of cure, ‘leave to amend is routinely and liberally granted to give the plaintiff a chance to cure the defect in question.’” (CLD Construction, Inc. v. City of San Ramon (2004) 120 Cal.App.4th 1141, 1146.)¿

Cross-Complainant
has not had an opportunity to amend the cross-complaint. The court finds there is a reasonable possibility Cross-Complainant can cure the defects identified above.

IV.
CONCLUSION¿

For
the foregoing reasons, the court sustains the demurrer as to the first and fourth causes of action but overrules it as to the second and third causes of action. Cross-Complainant is granted leave to amend within thirty (30) days of this order.

Dated: August 10, 2026 ___________________________________ Hon. Eric Harmon

Judge
of the Superior Court